

Opinion of KENNEDY, J.

his prosecutorial work could interfere with his exercise of independent judgment at every phase of his work, since the prosecutor might come to see later decisions in terms of their effect on his potential liability.” *Malley v. Briggs*, 475 U. S., at 343. That distortion would frustrate the objective of accuracy in the determination of guilt or innocence. See *Imbler v. Pachtman*, *supra*, at 426.

Furthermore, the very matter the prosecutors were considering, the decision to use particular expert testimony, was “subjected to the ‘crucible of the judicial process.’” *Burns v. Reed*, 500 U. S., at 496, quoting *Imbler v. Pachtman*, *supra*, at 440 (WHITE, J., concurring in judgment). Indeed, it appears that the only constitutional violations these actions are alleged to have caused occurred within the judicial process. The question Buckley presented in his petition for certiorari itself makes this point: “Whether prosecutors are entitled to absolute prosecutorial immunity for supervision of and participation in a year long pre-arrest and pre-indictment investigation because the injury suffered by the criminal defendant occurred during the later criminal proceedings?” Pet. for Cert. i. Remedies other than prosecutorial liability, for example, a pretrial ruling of inadmissibility or a rejection by the trier of fact, are more than adequate “to prevent abuses of authority by prosecutors.” *Burns v. Reed*, *supra*, at 496. See also *Butz v. Economou*, 438 U. S., at 512; *Imbler v. Pachtman*, *supra*, at 429.

Our holding in *Burns v. Reed*, *supra*, is not to the contrary. There we cautioned that prosecutors were not entitled to absolute immunity for “every litigation-inducing conduct,” *id.*, at 494, or for every action that “could be said to be in some way related to the ultimate decision whether to prosecute,” *id.*, at 495. The premise of *Burns* was that, in providing advice to the police, the prosecutor acted to guide the police, not to prepare his own case. See *id.*, at 482 (noting that the police officers sought the prosecutor’s advice first to find out whether hypnosis was “an unacceptable investiga-